

25STCV21558 25STCV21558

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-24

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Case Number: 25STCV21558 Hearing Date: June 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

24, 2026 TRIAL

DATE: Not set

CASE: Joanna Canton v. 3291 Wilshire, LLC, D/B/A The Arden Apartments, et al.

CASE NO.: 25STCV21558

DEMURRER

WITH MOTION TO STRIKE

MOVING PARTY: Defendants

3921 Wilshire LLC dba The Arden Apartments and Carter Residential, LLC

RESPONDING PARTY: Plaintiff Joanna

Canton

Plaintiff

Joanna Canton ("Canton" or "Plaintiff") lived in an apartment building located at 3291 Wilshire Boulevard, Los Angeles, California 90010 (the

"Property"). Plaintiff suffers from

several disabilities, including but not limited to fibromyalgia, dysautonomia, and

Ehlers-Danlos Syndrome ("EDS"). The Property is owned and/or operated by defendants

3291 Wilshire LLC dba The Arden Apartments (“Arden”) and Carter Residential, LLC (“Carter”) (collectively, “Defendants”).

Canton alleges that she was constructively evicted from her unit at the Property because Defendants failed to provide a habitable unit or reasonable accommodations for her disability-related needs.

I. BACKGROUND

On July 22, 2025, Plaintiff commenced this against Defendants.

On December 4, 2025, Plaintiff filed the operative Second Amended Complaint (“SAC”) alleging twelve causes of action.

On February 10, 2026, Defendants filed a demurrer and concurrently filed a motion to strike portions of the SAC.

On June 9, 2026, Plaintiff filed oppositions.

On June 17, 2026, Defendants filed a late reply.

The court begins by addressing the demurrer.

II. DISCUSSION RE DEMURRER

A. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. ¹ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) ² When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. ³ (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) ⁴ “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” ⁵ (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.) ⁶

B. Application

Defendants demur to the ninth cause of action for violations of the Fair Employment & Housing Act ("FEHA"), tenth cause of action for violation of the Unruh Civil Rights Act, eleventh cause of action for violation of the Disabled Persons Act, and twelfth cause of action for violation of the Los Angeles Tenant Anti-Harassment Ordinance.

The court addresses the challenges to these causes of action in turn.

1. Violation of the FEHA (9th COA)

To state a claim for housing accommodation discrimination, a plaintiff must allege that the defendant (i) refused to rent a housing accommodation, (ii) denied or withheld housing accommodations, (iii) included provisions of inferior terms, conditions, privileges, facilities, or services in connection with the housing accommodations, (iv) canceled or terminated the rental agreement, (v) refused to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied by the disabled person, if the modifications may be necessary to afford the disabled person full enjoyment of the premises, or (vi) refused to make reasonable accommodations in rules, policies, practices, or services when the accommodations may be necessary to afford the disabled person equal opportunity to use and enjoy a dwelling. (Gov. Code, § 12927(c)(1).) " 'Housing accommodation' is defined as any building, structure, or portion thereof that is occupied, or intended to be occupied . . ." (Gov. Code § 12927(d).)

Defendants argue the ninth cause of action fails because the SAC does not allege any facts to show Defendants' "alleged conduct was motivated by Plaintiff's disability, any purported differential treatment, or a causal connection between Plaintiff's disability and Defendants' conduct." (Dem., p. 9:1-3.)

The court disagrees. The SAC alleges that Defendants discriminated against Plaintiff on the basis of her disabilities by (i) discriminating in the rental of, or otherwise making unavailable or denying, a dwelling, (ii) discriminating in the terms, conditions, or privileges of rental of a dwelling, or in the provision of services or facilities in connection with a dwelling, (iii) refusing to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford Plaintiff equal opportunity, (iv) adopting and maintaining policies that disparately impact residents with disabilities, when said policies are arbitrary, artificial, and unnecessary to

achieve a valid interest or legitimate objective and when a less discriminatory alternative exists, (v) failing to take steps to replace, repair, or modernize the substandard conditions in Plaintiff's unit or otherwise take meaningful measures to ensure Plaintiff was afforded a unit that met her disability-related needs, and (vi) failing to engage in an interactive process regarding Plaintiff's disability-related needs and accommodations that may be necessary. (SAC ¶ 168.) Plaintiff further claims that Defendants' conduct was substantially motivated by Plaintiff's status as a person with disabilities. (SAC ¶ 169.) These otherwise conclusory allegations are supported by the following facts:

In January 2025, when Plaintiff informed Defendants of the nonfunctional heating and cooling system in her apartment and its adverse impact on her health, she asked Defendants to "promptly address the issues to avoid further exacerbation of her symptoms." (SAC, ¶ 34.)

While her air conditioner was broken, Plaintiff requested Defendants provide her with a portable air conditioner because the heat was exacerbating her medical condition. (Id., at ¶ 44.)

When Defendants told Plaintiff that arrangements were made for a multi-day remediation project, Plaintiff requested Defendants postpone construction until she moved out to avoid further exacerbation of her symptoms. (Id., at ¶ 52.) When there was no response, Plaintiff requested Defendants arrange a hotel for her while the remediation occurred, to avoid further physical deterioration. (Id., at ¶ 53.)

Plaintiff asked Defendants to fix the non-functional heater and inadequate window weatherproofing in her apartment due to her health conditions. (Id., at ¶¶ 68-69, 71.) She reiterated these requests on March 31 and April 2, 2025. (Id., at ¶¶ 74-75.)

Throughout her tenancy, Plaintiff requested Defendants reasonably accommodate her disabilities by, among other things, "properly and permanently addressing the lack of heating and cooling in her unit, the faulty air circulation and HVAC system, and the lack of adequate weatherproofing and

waterproofing. Plaintiff also requested reasonable accommodations in the form of 'temporary' fixes that Defendants refused." (Id., at ¶¶ 101-102.)

In August 2025, Plaintiff requested Defendants change her lease to a month-to-month contract so that she could promptly vacate her apartment upon locating a unit that was suitable for her medical needs. (Id., at ¶¶ 50; 105.) That same month, Plaintiff asked Defendants to postpone remedial work in her unit because she could not "continue to expose [her] already fragile health to the ongoing repairs and issues in [her] apartment." (Id., at ¶ 105.)

When Defendants refused to change Plaintiff's lease to a month-to-month tenancy, Plaintiff asked Defendants to agree to terminate her lease without penalties, "on account of [her] disabilities and the state of the unit." (Id., at ¶ 106.)

The foregoing factual allegations are more than sufficient to establish a causal nexus between Plaintiff's disability and Defendants' conduct. In reply, Defendants argue that Plaintiff conflates maintenance requests with accommodation requests. However, a plaintiff in a FEHA discrimination case "is not specifically required to invoke the protections of FEHA or speak any 'magic words' in order to effectively request an accommodation under the statute." (Soria v. Univision Radio Los Angeles, Inc. (2016) 5 Cal.App.5th 570, 598.) So to here. As alleged, Plaintiff made various requests to Defendants which were clearly tied to her disability. This is sufficient to state a FEHA housing discrimination claim.

The demurrer to the ninth cause of action is OVERRULED.

2. Violation of the Unruh Civil Rights Act (10th COA)

The Unruh Civil Rights Act provides that "[a]ll persons within the jurisdiction of this state are free and equal . . . and no matter what their . . . disability . . . are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business

establishments of every kind whatsoever.” (Civ. Code, § 51.) “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff’s protected status.”

(Liapes v. Facebook, Inc. (2023) 95 Cal.App.5th 910, 922.)

“A

plaintiff who establishes a violation of the ADA, ..., need not prove intentional discrimination in order to obtain damages under [the Unruh Civil Rights Act].” (Munson v. Del Taco, Inc.

(2009) 46 Cal.4th 661, 665.) However, “[u]nless

an Unruh Civil Rights Act claim is based on an [Americans with Disabilities Act of 1990] violation,” a plaintiff must prove intentional discrimination].)

Intentional discrimination requires “ ‘willful, affirmative misconduct.’ ” (Martinez v. Cot’n Wash, Inc. (2022) 81 Cal.App.5th 1026, 1036.)

Defendants

argue the tenth cause of action fails because the SAC does not allege any facts to show Defendants acted with intent to discriminate against Plaintiff because of her disability. The argument lacks

merit. The SAC does not premise the

tenth cause of action on ADA violations, and thus, the SAC must allege facts to establish the requisite intent. (See

SAC, ¶¶ 170-174.) The SAC sufficiently

alleges that Defendants’ conduct was substantially motivated by Plaintiff’s status as a person with disabilities.

(See SAC, ¶ 174.)

The

demurrer to the tenth cause of action is OVERULED.

3. Violation

of the Disabled Persons Act (11th COA)

Civil Code section 54.1, subdivision (a)(1) provides that

“[i]ndividuals with disabilities shall be entitled to full and equal access, as

other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, clinics, and physicians’ offices, and privileges of all common carriers, airplanes, motor vehicles, railroad trains,

motorbuses, streetcars, boats, or any other public conveyances or modes of transportation.” To plead a cause of action under the Disabled Persons Act, a plaintiff must allege that a provider refused reasonable modifications at the tenant’s expense if necessary for full enjoyment, with an agreement to restore premises. (Civ. Code, § 54.1(b)(3)(A).)

Defendants

argue the eleventh cause of action fails for the same reasons as the ninth and tenth causes of action and is duplicative.

The argument fails. As discussed above, the SAC states claims for violation of the FEHA and the Unruh Act. Further, a Disabled Persons Act claim does not require allegations establishing a defendant’s intent. (Donald v. Café Royale, Inc. (1990) 218 Cal.App.3d 168, 178.) Moreover, the same nucleus of events may give rise to separate and distinct causes of action.

The demurrer to the eleventh cause of action is OVERRULED.

4. Violation of the Los Angeles Tenant Anti-Harassment Ordinance (12th COA)

Los Angeles Municipal Code

section 45.33 penalizes a landlord who knowingly and willfully harasses a tenant to his or her detriment and harm, and that serves no lawful purpose. Harassment, in this context includes:

1. Reducing or eliminating, or threatening to reduce or to eliminate, housing services required by a lease, contract or law, including the elimination of parking if provided in the tenant’s lease or contract, except when necessary to comply with a court order or local or state law, or to create an accessory dwelling unit or additional housing.

2

2. Failing to perform and timely complete necessary repairs and maintenance required by Federal, State, County, or local housing, health, or safety laws; or failure to follow applicable industry standards to minimize exposure to noise, dust, lead paint, asbestos,

or other building materials with potentially harmful health impacts.¿

3.¿ Abuse of the right of access into a rental unit as

established and limited by California Civil Code Section 1954, including the following: entering or photographing portions of a rental unit that are beyond the scope of a lawful entry or inspection; failing to explicitly state the specific justification for entry in the notice of entry to the tenant; failing to reasonably coordinate entry with the tenant's schedule; misrepresenting in the notice of entry the reasons for entering the residential rental property or rental unit; failing to provide the approximate time window for the entry or providing a time window that is unreasonably excessive in time for the stated purpose; failing to timely notify the tenant that the entry for which the tenant was previously given notice has been canceled; excessively requesting entry in a manner not reasonably justified by the reason(s) stated on the notice.

4.¿ Threatening a tenant, or their guests, by word or gesture, with physical harm.

5.¿ Attempting to coerce the tenant to vacate with offer(s) of payments.

¿

6.¿ Representing to a tenant that the tenant is required to vacate a rental unit or enticing a tenant to vacate a rental unit through a misrepresentation or the concealment or omission of a material fact.

¿

7.¿ Threatening or taking action to terminate any tenancy

including service of any notice to quit or other eviction notice or bringing action to recover possession of a rental unit based on facts which the landlord has no reasonable cause to believe to be true. No landlord shall be liable under this subsection for bringing an action to recover possession of a rental unit unless and until the tenant has obtained a favorable termination of that action.

¿

8. Threatening to or engaging in any act or omission which interferes with the tenant's right to use and enjoy the rental unit or whereby the premises are rendered unfit for human habitation and occupancy.

(LAMC, § 45.33.)

Defendants argue the twelfth cause of action fails because the SAC does not allege sufficient facts to show willful, affirmative misconduct on the part of Defendants. The court disagrees. The SAC alleges that Defendants' conduct was substantially motivated by Plaintiff's status as a person with disabilities. (See SAC, ¶ 179.) This is sufficient to state a claim for violation of the anti-harassment ordinance.

The demurrer to the twelfth cause of action is OVERRULED.

C. Conclusion

The demurrers are Overruled.

III. DISCUSSION RE MOTION TO STRIKE

A.

Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Proc., § 436.)

B.

Application

Defendants move to strike the fourth, seventh, ninth, tenth, eleventh, and twelfth causes of action in their entirety on duplicity grounds. Specifically, Defendants argue the fourth cause of action for private nuisance is duplicative of the third cause of action for breach of covenant of quiet enjoyment, the seventh cause of action for negligent hiring, supervision, and retention is duplicative of the sixth cause of action for negligence, and

that the ninth, tenth, eleventh, and twelfth causes of action are duplicative of each other.

These arguments lack merit. As noted above, the same nucleus of facts may support multiple causes of action.

Critically, Defendants do not engage in any analysis to establish one or more elements of the challenge causes of action are not sufficiently alleged.

C.

Conclusion

The motion to strike is DENIED.

IV. DISPOSITIONS

The demurrers are Overruled.

The motion to
strike is Denied.

Defendants are ordered to serve and file their Answer to the
Second Amended Complaint within 10 days of this order.

Plaintiff to give notice, unless waived.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court